

**SUBSTITUTE FOR
SENATE BILL NO. 866**

A bill to make appropriations for the department of corrections for the fiscal year ending September 30, 2027; and to provide for the expenditure of the appropriations.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

PART 1

LINE-ITEM APPROPRIATIONS

Sec. 101. There is appropriated for the department of corrections for the fiscal year ending September 30, 2027, from the following funds:

DEPARTMENT OF CORRECTIONS

APPROPRIATION SUMMARY

Full-time equated unclassified positions	16.0
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Full-time equated classified positions	12,758.0
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1	GROSS APPROPRIATION		\$ 2,184,138,100
2	Interdepartmental grant revenues:		
3	Total interdepartmental grants and		
4	intradepartmental transfers		0
5	ADJUSTED GROSS APPROPRIATION		\$ 2,184,138,100
6	Federal revenues:		
7	Total federal revenues		5,222,600
8	Special revenue funds:		
9	Total local revenues		275,000
10	Total private revenues		0
11	Total other state restricted revenues		30,559,800
12	State general fund/general purpose		\$ 2,148,080,700
13	Sec. 102. DEPARTMENTAL ADMINISTRATION AND		
14	SUPPORT		
15	Full-time equated unclassified positions	16.0	
16	Full-time equated classified positions	414.0	
17	Unclassified salaries--FTEs	16.0	\$ 2,433,800
18	Administrative hearings officers		4,229,600
19	Budget and operations administration--FTEs	317.0	46,106,500
20	Compensatory buyout and union leave bank		100
21	Corrections officer pensions		33,000,000
22	County jail reimbursement program		14,564,600
23	Employee wellness programming--FTEs	9.0	2,593,300
24	Equipment and special maintenance		1,559,700
25	Executive direction--FTEs	28.0	5,586,700
26	Judicial data warehouse user fees		50,600
27	New custody staff training		12,338,600
28	Prison industries operations--FTEs	60.0	10,449,400



1	Property management		2,638,000
2	Prosecutorial and detainer expenses		2,551,000
3	Worker's compensation		8,584,100
4	GROSS APPROPRIATION	\$	146,686,000
5	Appropriated from:		
6	Federal revenues:		
7	DOJ, prison rape elimination act grant		674,700
8	Special revenue funds:		
9	Correctional industries revolving fund		10,449,400
10	Correctional industries revolving fund 110		721,600
11	Jail reimbursement program fund		5,900,000
12	State general fund/general purpose	\$	128,940,300
13	Sec. 103. OFFENDER SUCCESS ADMINISTRATION		
14	Full-time equated classified positions	330.9	
15	Community corrections comprehensive plans and		
16	services		\$ 15,198,100
17	County residential services		13,575,500
18	Criminal justice reinvestment		1,448,400
19	Education/skilled trades/career readiness		
20	programs--FTEs	249.9	39,917,800
21	Enhanced food technology program--FTEs	11.0	1,614,700
22	Higher education in prison		1,250,000
23	Offender success community partners		18,925,000
24	Offender success federal grants		751,000
25	Offender success programming		15,742,200
26	Offender success services--FTEs	70.0	16,074,500
27	GROSS APPROPRIATION	\$	124,497,200
28	Appropriated from:		



1	Federal revenues:		
2	DOJ, prisoner reintegration		751,000
3	Federal education revenues		1,643,800
4	State general fund/general purpose	\$	122,102,400
5	Sec. 104. FIELD OPERATIONS ADMINISTRATION		
6	Full-time equated classified positions	1,701.5	
7	Field operations--FTEs	1,670.5	\$ 233,379,000
8	Parole board operations--FTEs	31.0	3,999,100
9	Parole/probation services		940,000
10	GROSS APPROPRIATION	\$	238,318,100
11	Appropriated from:		
12	Special revenue funds:		
13	Community tether program reimbursement		275,000
14	Reentry center offender reimbursements		10,000
15	Supervision fees		6,630,500
16	Supervision fees set-aside		940,000
17	State general fund/general purpose	\$	230,462,600
18	Sec. 105. CORRECTIONAL FACILITIES ADMINISTRATION		
19	Full-time equated classified positions	678.0	
20	Body-worn cameras--FTEs	8.0	\$ 3,848,700
21	Central records--FTEs	43.0	5,010,200
22	Contraband prevention		2,750,000
23	Correctional facilities administration--FTEs	37.0	7,089,300
24	Housing inmates in federal institutions		511,000
25	Inmate housing fund		100
26	Inmate legal services		290,900
27	Intelligence unit--FTEs	30.0	4,135,000
28	Leased beds and alternatives to leased beds		100

1	Prison food service--FTEs	324.0	79,029,100
2	Prison store operations--FTEs	32.0	3,745,300
3	Transportation--FTEs	204.0	36,578,600
4	GROSS APPROPRIATION	\$	142,988,300
5	Appropriated from:		
6	Federal revenues:		
7	DOJ-BOP, federal prisoner reimbursement		411,000
8	SSA-SSI, incentive payment		272,000
9	Special revenue funds:		
10	Correctional industries revolving fund 110		901,900
11	Resident stores		3,745,300
12	State general fund/general purpose	\$	137,658,100
13	Sec. 106. HEALTH CARE		
14	Full-time equated classified positions	1,475.3	
15	Clinical complexes--FTEs	1,000.8	\$ 183,630,400
16	Health care administration--FTEs	18.0	3,805,400
17	Healthy Michigan plan administration--FTEs	12.0	1,085,000
18	Hepatitis C treatment		7,499,100
19	Interdepartmental grant to health and human		
20	services, eligibility specialists		120,200
21	Mental health and substance use disorder		
22	treatment services--FTEs	444.5	68,887,100
23	Prisoner health care services		117,540,700
24	Vaccination program		691,200
25	GROSS APPROPRIATION	\$	383,259,100
26	Appropriated from:		
27	Federal revenues:		
28	Federal revenues and reimbursements		435,300



1	Special revenue funds:		
2	Prisoner health care co-payments		257,200
3	State general fund/general purpose	\$	382,566,600
4	Sec. 107. CORRECTIONAL FACILITIES		
5	Full-time equated classified positions	8,158.3	
6	Alger Correctional Facility - Munising--FTEs	259.0	\$ 30,467,400
7	Baraga Correctional Facility - Baraga--FTEs	279.8	34,745,500
8	Bellamy Creek Correctional Facility - Ionia--		
9	FTEs	414.1	50,568,900
10	Carson City Correctional Facility - Carson		
11	City--FTEs	422.4	51,327,000
12	Central Michigan Correctional Facility - St.		
13	Louis--FTEs	385.0	49,694,100
14	Charles E. Egeler Correctional Facility -		
15	Jackson--FTEs	374.6	49,037,100
16	Chippewa Correctional Facility - Kincheloe--		
17	FTEs	443.6	54,491,800
18	Cooper Street Correctional Facility - Jackson--		
19	FTEs	254.6	28,887,800
20	Earnest C. Brooks Correctional Facility -		
21	Muskegon--FTEs	248.2	32,656,000
22	G. Robert Cotton Correctional Facility -		
23	Jackson--FTEs	375.0	44,009,000
24	Gus Harrison Correctional Facility - Adrian--		
25	FTEs	285.4	38,717,900
26	Ionia Correctional Facility - Ionia--FTEs	286.3	37,139,200
27	Kinross Correctional Facility - Kincheloe--FTEs	222.0	31,341,700



1	Lakeland Correctional Facility - Coldwater--		
2	FTEs	272.4	35,481,800
3	Macomb Correctional Facility - New Haven--FTEs	313.3	40,133,900
4	Marquette Branch Prison - Marquette--FTEs	319.7	36,806,400
5	Muskegon Correctional Facility - Muskegon--FTEs	217.3	29,537,700
6	Newberry Correctional Facility - Newberry--FTEs	200.1	26,318,600
7	Oaks Correctional Facility - Eastlake--FTEs	289.4	37,859,900
8	Parnall Correctional Facility - Jackson--FTEs	262.5	31,413,900
9	Richard A. Handlon Correctional Facility -		
10	Ionia--FTEs	268.3	34,350,300
11	Saginaw Correctional Facility - Freeland--FTEs	268.6	35,728,600
12	Special Alternative Incarceration Program -		
13	Jackson--FTEs	26.2	3,374,700
14	St. Louis Correctional Facility - St. Louis--		
15	FTEs	302.9	40,697,800
16	Thumb Correctional Facility - Lapeer--FTEs	295.6	38,474,400
17	Women's Huron Valley Correctional Complex -		
18	Ypsilanti--FTEs	494.8	62,143,000
19	Woodland Correctional Facility - Whitmore Lake-		
20	-FTEs	287.2	39,518,800
21	Northern region administration and support--		
22	FTEs	42.0	4,257,600
23	Southern region administration and support--		
24	FTEs	48.0	17,115,200
25	GROSS APPROPRIATION		\$ 1,046,296,000
26	Appropriated from:		
27	Federal revenues:		
28	DOJ, state criminal assistance program		1,034,800



Special revenue funds:

State restricted fees, revenues and
reimbursements

102,100

State general fund/general purpose

\$ 1,045,159,100

Sec. 108. INFORMATION TECHNOLOGY

Information technology services and projects

\$ 31,754,900

GROSS APPROPRIATION

\$ 31,754,900

Appropriated from:

Special revenue funds:

Correctional industries revolving fund 110

183,000

Supervision fees set-aside

718,800

State general fund/general purpose

\$ 30,853,100

Sec. 109. ONE-TIME APPROPRIATIONS

Correctional facilities

\$ 55,000,000

New custody staff training

12,338,500

Wrap-around services

3,000,000

GROSS APPROPRIATION

\$ 70,338,500

Appropriated from:

State general fund/general purpose

\$ 70,338,500

PART 2

PROVISIONS CONCERNING APPROPRIATIONS

FOR FISCAL YEAR 2025-2026

GENERAL SECTIONS

Sec. 201. In accordance with section 30 of article IX of the state constitution of 1963, for the fiscal year ending September 30, 2027, total state spending under part 1 from state sources is \$2,178,640,500.00 and total state spending under part 1 from state sources to be paid to local units of government is \$122,497,200.00.



The following itemized statement identifies appropriations from which spending to local units of government will occur:

DEPARTMENT OF CORRECTIONS

Community corrections comprehensive plans and services	\$ 15,198,100
Community residential services	13,575,500
County jail reimbursement program	14,564,600
Field operations	76,607,900
Leased beds and alternatives to leased beds	100
Prosecutorial and detainer expenses	2,551,000
TOTAL	\$ 122,497,200

Sec. 202. The appropriations under this part and part 1 are subject to the management and budget act, 1984 PA 431, MCL 18.1101 to 18.1594.

Sec. 203. As used in this part and part 1:

(a) "Administrative segregation" means confinement for maintenance of order or discipline to a cell or room apart from accommodations provided for inmates who are participating in programs of the facility.

(b) "Department" means the department of corrections.

(c) "Director" means the director of the department.

(d) "DOJ" means the United States Department of Justice.

(e) "DOJ-BOP" means the DOJ Bureau of Prisons.

(f) "Evidence-based" means a decision-making process that integrates the best available research, clinician expertise, and client characteristics.

(g) "FTE" means full-time equated position in the classified service of this state.

(h) "Goal" means the intended or projected result of a



1 comprehensive corrections plan or community corrections program to
2 reduce repeat offending, criminogenic and high-risk behaviors,
3 prison commitment rates, the length of stay in a jail, or to
4 improve the utilization of a jail.

5 (i) "Jail" means a facility operated by a local unit of
6 government for the physical detention and correction of individuals
7 charged with or convicted of criminal offenses.

8 (j) "OCC" means the office of community corrections.

9 (k) "Offender success" means that an offender has, with the
10 support of the community, intervention of the field agent, and
11 benefit of any participation in programs and treatment, made an
12 adjustment while at liberty in the community such that the offender
13 has not been sentenced to or returned to prison for the conviction
14 of a new crime or the revocation of probation or parole.

15 (l) "Recidivism" means that term as defined in section 1 of
16 2017 PA 5, MCL 798.31.

17 (m) "Serious emotional disturbance" means that term as defined
18 in section 100d(3) of the mental health code, 1974 PA 258, MCL
19 330.1100d.

20 (n) "Serious mental illness" means that term as defined in
21 section 100d(4) of the mental health code, 1974 PA 258, MCL
22 330.1100d.

23 (o) "SSA" means the United States Social Security
24 Administration.

25 (p) "SSA-SSI" means SSA supplemental security income.

26 (q) "Standard report recipients" means the senate and house
27 appropriations subcommittees on corrections and judiciary, the
28 senate and house fiscal agencies, the senate and house policy
29 offices, the legislative corrections ombudsman, and the state



1 budget office.

2 Sec. 204. The department shall use the internet to fulfill the
3 reporting requirements of this part and shall make each report
4 readily accessible to the public and conspicuously post each
5 required report in a single archivable location on the department's
6 or agency's Michigan.gov website not later than the due date
7 required for each report. In addition to placing all reports
8 required in the current fiscal year on the department's website,
9 the department shall maintain on its website all reports placed on
10 the website from previous fiscal years posted by fiscal year in the
11 same archivable location. The department shall also transmit all
12 required reports for the current fiscal year to the standard report
13 recipients and any other required recipients by email.

14 Sec. 205. To the extent permissible under section 261 of the
15 management and budget act, 1984 PA 431, MCL 18.1261, all of the
16 following apply to the expenditure of funds appropriated in part 1:

17 (a) The funds must not be used for the purchase of foreign
18 goods or services, or both, if competitively priced and of
19 comparable quality American goods or services, or both, are
20 available.

21 (b) Preference must be given to goods or services, or both,
22 manufactured or provided by Michigan businesses, if they are
23 competitively priced and of comparable quality.

24 (c) Preference must be given to goods or services, or both,
25 that are manufactured or provided by Michigan businesses owned and
26 operated by veterans, if they are competitively priced and of
27 comparable quality.

28 Sec. 206. The department shall not take disciplinary action
29 against an employee of the department or a prisoner because the



1 employee or prisoner communicates with a member of the legislature
2 or legislative staff unless the communication is prohibited by law
3 and the department is exercising its authority as provided by law.

4 Sec. 207. Consistent with section 217 of the management and
5 budget act, 1984 PA 431, MCL 18.1217, the department shall prepare
6 a report on out-of-state travel expenses not later than January 1.
7 The report must list all travel by classified and unclassified
8 employees outside this state in the previous fiscal year that was
9 funded in whole or in part with funds appropriated in the
10 department's budget. The department shall submit the report to the
11 standard report recipients and to the senate and house
12 appropriations committees. The report must include all of the
13 following information:

14 (a) The dates of each travel occurrence.

15 (b) The total transportation and related costs of each travel
16 occurrence and the proportions funded with state general
17 fund/general purpose revenues, state restricted revenues, federal
18 revenues, and other revenues.

19 Sec. 208. (1) The department shall maximize utilization of its
20 in-person state workforce. The department shall prioritize
21 occupancy utilization of office space for each division within the
22 department. Employees with job responsibilities that require the
23 employees to serve in their capacities outside of an office shall
24 be monitored each pay period to ensure all work hours reported on
25 timesheets were actually worked.

26 (2) The department shall comply with requirements set forth by
27 the office of the state employer on in-person work and utilization
28 and occupancy rates of state buildings to ensure in-person work is
29 optimized and occupancy rates are 80% or higher, subject to market



1 conditions.

2 (3) The department shall adhere to civil service rules and
3 regulations that state the standard biweekly work period for a
4 full-time employee in the classified service of this state is the
5 equivalent of 80 hours of work. The department shall establish
6 policies and processes to ensure all employees are working their
7 jobs during agreed upon business hours.

8 Sec. 209. Not later than December 15, the state budget office
9 shall prepare and submit a report that provides estimates of the
10 total general fund/general purpose appropriation lapses at the
11 close of the previous fiscal year. The report must summarize the
12 projected year-end general fund/general purpose appropriation
13 lapses by major departmental program or program areas. The state
14 budget office shall submit the report to the standard report
15 recipients and to the chairpersons of the senate and house
16 appropriations committees.

17 Sec. 210. (1) In addition to the funds appropriated in part 1,
18 there is appropriated an amount not to exceed \$2,500,000.00 for
19 federal contingency authorization. Amounts appropriated are not
20 available for expenditure until they have been transferred to
21 another line item in part 1 under section 393(2) of the management
22 and budget act, 1984 PA 431, MCL 18.1393.

23 (2) In addition to the funds appropriated in part 1, there is
24 appropriated an amount not to exceed \$2,000,000.00 for local
25 contingency authorization. Amounts appropriated are not available
26 for expenditure until they have been transferred to another line
27 item in part 1 under section 393(2) of the management and budget
28 act, 1984 PA 431, MCL 18.1393.

29 Sec. 211. The department shall cooperate with the department



1 of technology, management, and budget to maintain a searchable
2 website accessible by the public at no cost that includes, but is
3 not limited to, all of the following for the department:

4 (a) Fiscal year-to-date expenditures by category.

5 (b) Fiscal year-to-date expenditures by appropriation unit.

6 (c) Fiscal year-to-date payments to a selected vendor,
7 including the vendor name, payment date, payment amount, and
8 payment description.

9 Sec. 212. Not later than 14 days after the release of the
10 executive budget recommendation, the department shall cooperate
11 with the state budget office to provide an annual report on
12 estimated state restricted fund balances, state restricted fund
13 projected revenues, and state restricted fund expenditures for the
14 previous 2 fiscal years. The report must be submitted to the
15 standard report recipients and to the chairpersons of the senate
16 and house appropriations committees.

17 Sec. 213. (1) Funds appropriated in part 1 must not be used to
18 restrict or impede a marginalized community's access to government
19 resources, programs, or facilities.

20 (2) From the funds appropriated in part 1, local governments
21 shall report any action or policy that attempts to restrict or
22 interfere with the duties of the local health officer.

23 Sec. 214. To the extent permissible under the management and
24 budget act, 1984 PA 431, MCL 18.1101 to 18.1594, the director shall
25 take all reasonable steps to ensure geographically disadvantaged
26 business enterprises compete for and perform contracts to provide
27 services or supplies, or both. The director shall strongly
28 encourage firms with which the department contracts to subcontract
29 with certified geographically disadvantaged business enterprises



1 for services, supplies, or both. As used in this section,
2 "geographically disadvantaged business enterprises" means that term
3 as defined in Executive Directive No. 2023-1.

4 Sec. 215. On a quarterly basis, the department shall report on
5 the number of full-time equated positions in pay status by civil
6 service classification, including a comparison by line item of the
7 number of full-time equated positions authorized from funds
8 appropriated in part 1 to the actual number of full-time equated
9 positions employed by the department at the end of the reporting
10 period. The report must be submitted to the standard report
11 recipients and to the senate and house appropriations committees.

12 Sec. 216. If the state administrative board, acting under
13 section 3 of 1921 PA 2, MCL 17.3, transfers funds from an amount
14 appropriated under part 1, the legislature may, by a concurrent
15 resolution adopted by a majority of the members elected to and
16 serving in each house, intertransfer funds within part 1 for the
17 particular department, board, commission, officer, or institution.

18 Sec. 217. The department shall receive and retain copies of
19 all reports funded from appropriations in part 1. The department
20 shall follow federal and state law and guidelines for short-term
21 and long-term retention of records. The department may
22 electronically retain copies of reports unless otherwise required
23 by federal and state guidelines.

24 Sec. 217a. The state budget director shall take steps to
25 ensure that all fiscal state recovery funds allocated to this state
26 under the American rescue plan act of 2021, Public Law 117-2, are
27 expended by December 31, 2026, as required by law. Any state fiscal
28 recovery funds that would otherwise lapse after September 30, 2026,
29 are automatically reappropriated for the same purpose as originally



1 authorized and available for expenditure through December 31, 2026,
2 and any subsequent financial close out period.

3 Sec. 217b. (1) The state budget director shall take steps to
4 ensure that all state fiscal recovery funds allocated to this state
5 under the American rescue plan act of 2021, Public Law 117-2, are
6 expended by December 31, 2026, as required by law. The state budget
7 director may reallocate appropriated funds for the purpose of fully
8 utilizing state fiscal recovery funds that are in jeopardy of not
9 meeting the expenditure deadline for reasons that may include, but
10 are not limited to, completed projects coming in under budget or
11 funds unable to be fully used by subrecipients. The state budget
12 director shall reallocate any of the funds reallocated under this
13 subsection to the programs or purposes specified in this section.
14 Any funds reallocated are unappropriated and immediately
15 reappropriated for the following purposes:

16 (a) To reclassify general fund/general purpose appropriations
17 for payroll and covered benefits for eligible public health and
18 safety employees at the department.

19 (b) To reclassify general fund/general purpose appropriations
20 for payroll and covered benefits for eligible public health and
21 safety employees at the department of state police.

22 (2) All applicable guidance, implementation, and reporting
23 provisions of Public Law 117-2 must be followed for state fiscal
24 recovery funds reallocated and reappropriated under subsection (1).

25 (3) The state budget director shall notify the senate and the
26 house appropriations committees not later than 1 business day after
27 making any reallocations under subsection (1). The notification
28 must include the authorized program under which funds were
29 originally appropriated, the amount of the reallocation, the



1 program, or programs, or purpose, and the department to which the
2 funds are being reallocated under subsection (1), and the amount
3 reallocated to each program or purpose.

4 Sec. 218. Not later than April 1, the department shall report
5 on each specific policy change made to implement a public act
6 affecting the department that took effect during the previous
7 calendar year. The report must include reference to the public act
8 that necessitates the policy change. The department shall submit
9 the report to the standard report recipients and to the senate and
10 house appropriations committees, the joint committee on
11 administrative rules, the senate standing committee on civil
12 rights, judiciary, and public safety, and the house standing
13 committee on criminal justice.

14 Sec. 219. To the extent possible, the department shall not
15 expend appropriations under part 1 until all existing authorized
16 work project funds available for the same purposes are exhausted.

17 Sec. 220. Not later than 6 months after the state budget
18 office issues work project letters, the department shall submit an
19 annual report that summarizes all work project accounts. The report
20 must include all of the following:

21 (a) A list of all work project accounts.

22 (b) The status of all work project accounts, including amounts
23 expended, amounts encumbered, and available balances for each
24 account.

25 (c) The amount of funds that lapsed from any previously
26 designated work project accounts, the name and description of the
27 work project account, and the funds that received the lapsed
28 amounts.

29 Sec. 222. A department or agency that receives an



1 appropriation under this part or part 1 must provide an annual
2 report to the standard report recipients detailing federal policy
3 changes that do, or are expected to do, any of the following:

4 (a) Affect the operations of the department, including
5 reductions in federal revenue. For federal revenue reductions, the
6 annual report must detail the impact on the department or agency
7 and residents of this state, including, but not limited to, all of
8 the following information:

9 (i) The amount of additional state revenue required to replace
10 the lost federal revenue.

11 (ii) The services the department or agency will have to reduce
12 or eliminate due to the lost revenue.

13 (iii) The anticipated fiscal impact on residents of this state.

14 (b) Affect an industry, community, population, or other group
15 regulated or served by, or that otherwise engages with, the
16 department or agency.

17 (c) Create a regulatory gap that could negatively impact the
18 public.

19 (d) Increase the department's or agency's costs.

20 (e) Reduce or eliminate a program that provides services to
21 residents of this state.

22 Sec. 223. Total authorized appropriations from all sources
23 under part 1 for legacy costs for the fiscal year ending September
24 30, 2027 are estimated at \$133,039,600.00. From this amount, total
25 appropriations for pension-related legacy costs for the department
26 are estimated at \$133,039,600.00. Total appropriations for retiree
27 health care legacy costs for the department are estimated at \$0.00.

28 Sec. 224. Not later than April 1, the department shall provide
29 to the standard report recipients a copy of its annual strategic



1 plan prepared in compliance with section 363 of the management and
2 budget act, 1984 PA 431, MCL 18.1363. The plan must include the
3 mission, vision, goals, strategies, and performance measures of the
4 department.

5 Sec. 226. The department shall report on any court settlement
6 that may require further legislative review of state statutory
7 programs or regulations.

8 Sec. 227. Not later than November 15, the department shall
9 disclose on a publicly accessible website private and other third-
10 party funds received by the department in the previous fiscal year.
11 The report must include the amount of funding received, the
12 specific source of funding received, the purpose for which funding
13 was expended, and the amount of any remaining funds. The report
14 must be submitted to the standard report recipients and to the
15 chairpersons of the senate and house appropriations committees.

16 Sec. 228. (1) Not later than 30 days after the enactment of
17 this act, the house and senate appropriations committees shall
18 provide to the state budget office a jointly agreed upon list of
19 legislatively directed spending items funded in part 1. The list
20 must include all information and documents pertaining to
21 legislatively directed spending items funded as publicly disclosed
22 in accordance with sections 364 and 364a of the management and
23 budget act, 1984 PA 431, MCL 18.1364 and 18.1364a.

24 (2) In accordance with section 364(4) of the management and
25 budget act, 1984 PA 431, MCL 18.1364, the department or agency
26 administering the legislatively directed spending items shall post
27 a report in a publicly accessible location on its website beginning
28 March 15 of the current fiscal year. The department or agency shall
29 update the report and shall post an updated report not later than



1 June 15 of the current fiscal year and again not later than
2 September 15 of the current fiscal year. The department shall
3 include in the report the most comprehensive information the
4 department has available at the time of posting for legislatively
5 directed spending items that are awarded.

6 (3) As used in this section, "legislatively directed spending
7 items" means that term as defined in section 364 of the management
8 and budget act, 1984 PA 431, MCL 18.1364.

9 Sec. 229. (1) In addition to any other requirements under this
10 part, if the department is authorized under this part to expend
11 funds in addition to those appropriated in part 1, the department
12 shall, except as otherwise provided under subsection (2), do all of
13 the following:

14 (a) Not later than November 1, provide a report to the
15 chairpersons of the senate and house appropriations committees, the
16 senate and house fiscal agencies, and the state budget office that
17 details all of the following:

18 (i) The type of funding received during the previous fiscal
19 year that was authorized in part 2 of article 2 of 2025 PA 22.

20 (ii) When the funding was received.

21 (iii) The amount of funding received.

22 (iv) How much of the funding was spent and for what purpose.

23 (b) Not later than 60 days after receipt of funds authorized
24 under this part, provide a report to the chairpersons of the senate
25 and house appropriations committees, the senate and house fiscal
26 agencies, and the state budget office that details all of the
27 following:

28 (i) The type of funding received.

29 (ii) When the funding was received.



1 (iii) The amount of funding received.

2 (iv) The anticipated or actual amount to be spent and for what
3 purpose.

4 (c) Not later than February 15, provide a report to the
5 chairpersons of the senate and house appropriations committees, the
6 senate and house fiscal agencies, and the state budget office with
7 an estimate of funding authorized by this part that the department
8 anticipates it will receive in the subsequent fiscal year,
9 identifying all of the following:

10 (i) Each type of funding anticipated.

11 (ii) The amount of each type of funding anticipated.

12 (iii) The purpose of each type of funding.

13 (2) If another reporting requirement under this part would
14 provide substantially similar information on a substantially
15 similar time frame as required under subsection (1), subsection (1)
16 does not apply.

17
18 **DEPARTMENTAL ADMINISTRATION AND SUPPORT**

19 Sec. 301. For 3 years after a felony offender is released from
20 the department's jurisdiction, the department shall maintain the
21 offender's file on the offender tracking information system and
22 make it publicly accessible in the same manner as the file of the
23 current offender. The department shall immediately remove the
24 offender's file from the offender tracking information system upon
25 determination that the offender was wrongfully convicted and the
26 offender's file is not otherwise required to be maintained on the
27 offender tracking information system.

28 Sec. 302. From the funds appropriated in part 1, the
29 department shall submit a report not later than March 1 on the



1 department's staff retention strategies. The report must include,
2 but not be limited to, all of the following:

3 (a) The department's strategies on how to improve employee
4 engagement, how to improve employee wellness, and how to offer
5 additional training and professional development for employees,
6 including metrics the department is using to measure success of
7 employee wellness programming.

8 (b) Mechanisms by which the department receives employee
9 feedback in areas under subdivision (a) and how the department
10 considers suggestions made by employees.

11 (c) Steps the department has taken, and future plans and goals
12 the department has for retention and improving employee wellness.

13 Sec. 303. From the funds appropriated in part 1, the
14 department shall submit a report not later than March 1 on the
15 number of employee departures. The report must include all of the
16 following:

17 (a) The number of corrections officers that departed from
18 employment at a state correctional facility in the previous fiscal
19 year and the number of years they worked for the department.

20 (b) A chart that shows the normal distribution of employee
21 departures in the positions described under subdivision (a) based
22 on years of service. Years of service must be grouped into the
23 following ranges: 1 to 3 years, 3 to 5 years, 5 to 10 years, 10 to
24 15 years, 15 to 20 years, and 20 and more years.

25 (c) A section that shows the distinction between all of the
26 following:

27 (i) Recruits who are in training at the academy that depart
28 employment.

29 (ii) Recruits who are in training at a facility that depart



1 employment.

2 (iii) Employees who have been on the job that depart employment.

3 (d) A summary of the primary reasons for departure for each of
4 the ranges of years of service described under subdivision (1)(b)
5 based on the available responses.

6 Sec. 304. Funds appropriated in part 1 for prosecutorial and
7 detainer expenses must be used to reimburse counties for housing
8 and custody of parole violators and offenders being returned by the
9 department from community placement who are available for return to
10 institutional status and for prisoners who volunteer for placement
11 in a county jail.

12 Sec. 305. The department shall provide fiduciary oversight of
13 funds received under the local corrections officers training act,
14 2003 PA 125, MCL 791.531 to 791.546.

15 Sec. 306. From the funds appropriated in part 1, the
16 department shall issue a report not later than March 1 for all
17 vendor contracts with a value of \$500,000.00 or more that includes
18 the following:

19 (a) The original start date and the current expiration date of
20 each contract.

21 (b) The number of available option years.

22 (c) The number, if any, of contract compliance monitoring site
23 visits completed by the department for each vendor in the previous
24 fiscal year.

25 (d) The number and amount of fines in the previous fiscal year
26 for service-level agreement noncompliance for each vendor broken
27 down by area of noncompliance.

28 Sec. 307. (1) The department must ensure that a prisoner
29 telephone system is maintained. The prisoner telephone system must



1 meet ongoing operational needs of the department while maintaining
2 the lowest per-minute rate possible. The department must provide
3 notice to the public and standard report recipients at least 45
4 days in advance of any changes to telephone rates.

5 (2) To the extent that department intelligence operations are
6 funded in part 1 rather than funds received through the telephone
7 contract, any resulting savings to the state and the telephone
8 contract must be passed to telephone system users in the negotiated
9 phone call rate.

10 Sec. 308. From the funds appropriated in part 1, the
11 department shall provide for the training of all custody staff in
12 effective and safe ways of handling prisoners with mental illness
13 and referring prisoners to mental health treatment programs. Mental
14 health awareness training must be incorporated into the training of
15 new custody staff.

16 Sec. 309. From the funds appropriated in part 1, the
17 department shall issue a report for all correctional facilities not
18 later than January 1 that includes all of the following information
19 for each facility:

20 (a) The name, street address, and date of construction.

21 (b) The current maintenance costs.

22 (c) Any maintenance planned.

23 (d) The current utility costs.

24 (e) The expected future capital improvement costs.

25 (f) The current unspent balance of any authorized capital
26 outlay projects, including the original authorized amount.

27 (g) The expected future useful life.

28 Sec. 310. From the funds appropriated in part 1, the
29 department shall provide a report on the Michigan state industries



1 program not later than December 1. The report must include, but is
2 not limited to, all of the following information:

3 (a) The locations of the programs.

4 (b) The total number of participants at each location.

5 (c) A description of job duties and typical inmate schedules,
6 and the products that are produced.

7 (d) How the program provides marketable skills that lead to
8 employable outcomes after release from a department facility.

9 Sec. 311. (1) Funds appropriated in part 1 for employee
10 wellness programming must be used for post-traumatic stress
11 outreach, treating mental health issues, peer support programs, and
12 providing mental health programming for all department staff,
13 including former employees.

14 (2) Not later than December 15, the department shall submit a
15 report on programs the department has established, the level of
16 employee involvement, and expenditures made by the department for
17 employee wellness programming.

18 Sec. 312. (1) From the funds appropriated in part 1 for new
19 custody staff, the department shall work to hire and train new
20 corrections officers to address attrition of corrections officers
21 and to decrease overtime costs. The department shall submit
22 quarterly reports on new employee schools. The reports must include
23 all of the following information for the immediately preceding
24 fiscal quarter, and as much of the information as possible for the
25 current and next fiscal year:

26 (a) The number of new employee schools that took place and the
27 location of each.

28 (b) The number of recruits that started in each employee
29 school.



1 (c) The number of recruits that graduated from each employee
2 school and continued employment with the department.

3 (2) Third quarter reports must outline steps the department
4 has taken to obtain the highest number of recruits possible for
5 each new employee school. A report prepared under this subsection
6 must include, but is not limited to, all of the following
7 information:

8 (a) Internal sources of recruitment, including transfers and
9 promotions.

10 (b) External sources of recruitment, including advertisements.

11 (c) Job portals, social networking platforms, placement
12 agencies, job fairs, campus placements, or professional entities
13 used for recruitment.

14 (d) Whether the department's website was used to advertise
15 vacancies.

16 Sec. 313. From the funds appropriated in part 1, the
17 department shall submit a quarterly report on the number of
18 overtime hours worked by all custody staff, by facility. The report
19 must include, for each facility, the reasons for overtime hours
20 worked and the average number of overtime hours worked by active
21 employees.

22 Sec. 314. From the funds appropriated in part 1, the
23 department may establish agreements and exchange offender data with
24 local, state, and federal agencies, law enforcement, community
25 service and treatment providers, and research partners in order to
26 improve offender success, reduce recidivism risk, and enhance
27 public safety. This data sharing may include, but is not limited
28 to, efforts to support all of the following:

29 (a) Providing continuing access to behavioral health, physical



1 health, and medication needs through community-based providers.

2 (b) Establishing assistance program eligibility and
3 participation.

4 (c) Collaborating with community service providers for
5 continued care and access to services for offenders.

6 (d) Providing ongoing cognitive and behavioral treatment
7 programming in the community.

8 (e) Providing substance abuse testing and referrals for
9 counseling services and treatment.

10 (f) Providing vocational skill training, job placement
11 support, and monitoring employment attainment.

12 (g) Determining educational attainment and needs.

13 (h) Establishing accurate offender identification, criminal
14 histories, and monitoring new criminal activity.

15 (i) Measuring and evaluating treatment programs and services
16 in support of evidence-based practices.

17 Sec. 315. From the funds appropriated in part 1, the
18 department shall submit 3-year and 5-year prison population
19 projection updates not later than April 1, including explanations
20 of the methodology and assumptions used in developing the
21 projection updates.

22 Sec. 316. From the funds appropriated in part 1, the
23 department shall provide an annual statistical report for the
24 preceding calendar year on the department's website not later than
25 June 30. The statistical report must include, but not be limited
26 to, the types of information as provided in the 2022 statistical
27 report.

28 Sec. 317. From the funds appropriated in part 1, the
29 department shall report the reincarceration recidivism rates of



1 offenders based on available data.

2 Sec. 318. (1) The department shall administer a county jail
3 reimbursement program from the funds appropriated in part 1 for the
4 purpose of reimbursing counties for housing in jails certain felons
5 who otherwise would have been sentenced to prison.

6 (2) The county jail reimbursement program must be used to
7 reimburse counties for convicted felons in the custody of the
8 sheriff if the conviction was for a crime committed on or after
9 January 1, 1999 and 1 of the following applies:

10 (a) The felon's sentencing guidelines recommended range upper
11 limit is more than 18 months, the felon's sentencing guidelines
12 recommended range lower limit is 12 months or less, the felon's
13 prior record variable score is 35 or more points, and the felon's
14 sentence is not for commission of a crime in crime class G or crime
15 class H or a nonperson crime in crime class F under chapter XVII of
16 the code of criminal procedure, 1927 PA 175, MCL 777.1 to 777.69.

17 (b) The felon's minimum sentencing guidelines range minimum is
18 more than 12 months under the sentencing guidelines described in
19 subdivision (a).

20 (c) The felon was sentenced to jail for a felony committed
21 while the felon was on parole and under the jurisdiction of the
22 parole board and for which the sentencing guidelines recommended
23 range for the minimum sentence has an upper limit of more than 18
24 months.

25 (3) State reimbursement under this section must be \$70.00 per
26 diem per diverted offender for offenders with a presumptive prison
27 guideline score, \$60.00 per diem per diverted offender for
28 offenders with a straddle cell guideline for a group 1 crime, and
29 \$45.00 per diem per diverted offender for offenders with a straddle



1 cell guideline for a group 2 crime. Reimbursements must be paid for
2 sentences up to a 1-year total.

3 (4) County jail reimbursement program expenditures must not
4 exceed the amount appropriated in part 1 for the county jail
5 reimbursement program. Payments to counties under the county jail
6 reimbursement program must be made in the order in which properly
7 documented requests for reimbursements are received. A request is
8 properly documented if it meets departmental requirements for
9 documentation. Not later than October 15, the department shall
10 distribute the documentation requirements to all counties.

11 (5) Any county that receives funding under this section for
12 the purpose of housing in jails certain felons who otherwise would
13 have been sentenced to prison shall, as a condition of receiving
14 the funding, report not later than September 30 an annual average
15 jail capacity and annual average jail occupancy for the previous
16 fiscal year.

17 (6) Not later than February 1, the department shall report all
18 of the following information:

19 (a) The number of inmates sentenced to the custody of the
20 sheriff and eligible for the county jail reimbursement program.

21 (b) The total amount paid to counties under the county jail
22 reimbursement program.

23 (c) The total number of days inmates were in the custody of
24 the sheriff and eligible for the county jail reimbursement program.

25 (d) The number of inmates sentenced to the custody of the
26 sheriff under each of the 3 categories: presumptive prison, group 1
27 crime, and group 2 crime in subsection (3).

28 (e) The total amount paid to counties under each of the 3
29 categories: presumptive prison, group 1 crime, and group 2 crime in



1 subsection (3).

2 (f) The total number of days inmates were in the custody of
3 the sheriff under each of the 3 categories: presumptive prison,
4 group 1 crime, and group 2 crime in subsection (3).

5 (g) The estimated cost of housing inmates sentenced to the
6 custody of the sheriff and eligible for the county jail
7 reimbursement program as inmates of a state prison.

8 (7) As used in this section:

9 (a) "Group 1 crime" means a crime in 1 or more of the
10 following offense categories: arson, assault, assaultive other,
11 burglary, criminal sexual conduct, homicide or resulting in death,
12 other sex offenses, robbery, and weapon possession as determined by
13 the department based on specific crimes for which counties received
14 reimbursement under the county jail reimbursement program in fiscal
15 year 2007 and fiscal year 2008, and listed in the county jail
16 reimbursement program document titled "FY 2007 and FY 2008 Group
17 One Crimes Reimbursed", dated March 31, 2009.

18 (b) "Group 2 crime" means a crime that is not a group 1 crime,
19 including larceny, fraud, forgery, embezzlement, motor vehicle
20 offenses, malicious destruction of property, controlled substance
21 offense, felony drunk driving, and other nonassaultive offenses.

22 (c) "In the custody of the sheriff" means that the convicted
23 felon has been sentenced to the county jail and either is housed in
24 a county jail, is in custody but is being housed at a hospital or
25 medical facility for a medical or mental health purpose, or has
26 been released from jail and is being monitored through the use of
27 the sheriff's electronic monitoring system.

28 Sec. 319. (1) From the funds appropriated in part 1, the
29 department shall provide all of the following information on the



1 offender population in a monthly report:

2 (a) Prison population by facility and security level,
3 including the population of prisoners under the department's
4 jurisdiction housed in county jails.

5 (b) Net operating capacity according to the most recent
6 certification report.

7 (c) Electronic monitoring populations.

8 (d) Parole populations.

9 (e) Probation populations, with identification of the number
10 of offenders in special alternative incarceration.

11 (2) From the funds appropriated in part 1, the department
12 shall provide all of the following information on the offender
13 population in a quarterly report:

14 (a) The number of closed housing units and beds in those
15 units, including the security level of closed beds.

16 (b) The number of prisoners serving life sentences.

17 (c) The number of prisoners classified as past their earliest
18 release date.

19 (d) The number of prisoner intakes during the previous
20 quarter.

21 (e) The number of prisoner exits, including paroles, maximum
22 discharges, and other exits during the previous quarter.

23 (3) If the department knows it will not meet the reporting
24 requirements under this section, the department shall immediately
25 issue a report that states that fact and that lists the reasons for
26 not meeting the reporting requirements.

27 Sec. 320. On a quarterly basis, the department shall report on
28 all of the following:

29 (a) A detailed accounting of all correction officer positions



1 at each correctional facility, including positions that are filled
2 and positions that are vacant by facility.

3 (b) A detailed accounting of all vacant positions that are
4 health care related.

5 Sec. 321. The department may charge fees and collect revenues
6 in excess of appropriations in part 1 not to exceed the cost of
7 offender services and programming, employee meals, parolee loans,
8 academic/vocational services, custody escorts, compassionate
9 visits, union steward activities, and public works programs and
10 services provided to local units of government or private nonprofit
11 organizations. The revenues and fees collected are appropriated for
12 all expenses associated with these services and activities.

13 Sec. 322. (1) The funds appropriated in part 1 for corrections
14 officer pensions must be remitted to the state employees'
15 retirement system for implementation costs.

16 (2) The funds appropriated in part 1 for corrections officer
17 pensions that are remitted to the state employees' retirement
18 system must be used to pay for costs associated with retirement
19 benefit changes provided to employees in the department that are
20 eligible.

21 (3) This section applies only if House Bill No. 4665, House
22 Bill No. 4666, and House Bill No. 4667 of the 102nd Legislature are
23 enacted into law.

24
25 **OFFENDER SUCCESS ADMINISTRATION**

26 Sec. 401. (1) From the funds appropriated in part 1, the
27 department shall provide a report not later than March 1 on
28 offender success expenditures, allocations, and performance. The
29 report must include, but not be limited to, details on prior-year



1 expenditures, including amounts spent on each project funded,
2 itemized by service provided and service provider. Reported
3 performance factors must be reported by region and must include,
4 but not be limited to, all of the following:

5 (a) The number of individuals who received transitional
6 housing services.

7 (b) The average length of stay in transitional housing.

8 (c) The number of individuals who received a referral for
9 economic stability assistance and the number of referred
10 individuals who secured employment or enrolled in
11 education/training to increase economic stability.

12 (d) The number of referred individuals who maintained
13 employment for 12 months or more.

14 (e) The total amount of leveraged services secured by the
15 contractor.

16 (2) As used in this section, "leveraged services" means
17 services that benefit clients that are not directly paid for by the
18 department, such as educational scholarships or grants, workforce
19 training grants, or housing choice vouchers.

20 (3) The department may accept cash or in-kind donations to
21 supplement funds for prison education training, supplies, and
22 materials necessary to complete the academic and jobs skills
23 related programs. All funds received are appropriated and may be
24 expended by the department. Any unexpended or unencumbered
25 donations at the end of the fiscal year shall not lapse to the
26 general fund but shall be carried forward to the subsequent fiscal
27 year.

28 Sec. 402. From the funds appropriated in part 1 for offender
29 success services, the department, when reasonably possible, shall



1 strive to do the following:

2 (a) Develop workforce and training opportunities in
3 consultation with employers and state and local workforce agencies.

4 (b) Assist individuals leaving prison with securing employment
5 or training prior to or following release, or both.

6 (c) Work with faith-based and secular organizations to provide
7 reentry supports and voluntary programming opportunities that have
8 been demonstrated to reduce prison violence and recidivism.

9 (d) Provide information on accessing mental health care
10 following release and, if appropriate, coordinate referral to
11 community mental health services.

12 (e) Ensure that inmates have potential employer matches in the
13 communities to which the inmates will return prior to each inmate's
14 initial parole hearing.

15 Sec. 404. Funds awarded for community residential services in
16 part 1 must provide for all of the following:

17 (a) An initial client assessment reimbursement of \$200.00.

18 (b) A per diem reimbursement of not more than \$70.00.

19 Sec. 405. Allowable uses of community corrections
20 comprehensive plans and services funds must include reimbursing
21 counties for transportation, treatment costs, and housing drunk
22 drivers during a period of assessment for treatment and case
23 planning, in accordance with an approved comprehensive plan.
24 Reimbursements for housing during the assessment process must be at
25 the rate of \$43.50 per day per offender, up to a maximum of 5 days
26 per offender.

27 Sec. 406. (1) From the funds appropriated in part 1, the
28 department shall submit the following information for each county
29 and counties consolidated for community corrections comprehensive



1 plans:

2 (a) Approved technical assistance grants and community
3 corrections comprehensive plans including each program and level of
4 funding, the utilization level of each program, and profile
5 information of enrolled offenders.

6 (b) If federal funds are made available, the number of
7 participants funded, the number served, the number successfully
8 completing the program, and a summary of the program activity.

9 (c) Status of the community corrections information system and
10 the jail population information system.

11 (d) Data on residential services, including participant data,
12 participant sentencing guideline scores, program expenditures,
13 average length of stay, and bed utilization data.

14 (e) Offender disposition data by sentencing guideline range,
15 by disposition type, by prior record variable score, by number and
16 percent statewide and by county, current year, and comparisons to
17 the previous 3 years.

18 (f) Data on the use of funding made available under the drunk
19 driver jail reduction and community treatment program.

20 (2) The report required under subsection (1) must include the
21 total funding allocated, program expenditures, required program
22 data, and year-to-date totals.

23 Sec. 407. From the funds appropriated in part 1, the
24 department shall establish and maintain policies and procedures
25 that assist prisoners with obtaining a birth certificate, duplicate
26 Social Security card, if eligible, DD Form 214 or other military
27 documentation, state identification card, and operator's license
28 before parole or discharge.

29 Sec. 408. (1) Funds appropriated in part 1 for higher



1 education in prison must be used by the department in collaboration
2 with accredited universities or colleges to provide incarcerated
3 individuals the opportunity to participate in comprehensive
4 bachelor's degree programs at no cost to the incarcerated
5 individual. The funds must be used for eligible expenses including
6 staffing, supplies, and tuition.

7 (2) Universities and colleges that receive funding under this
8 section must report not later than April 1 on all of the following,
9 by correctional facility, for the previous fiscal year:

10 (a) Expenditure of funds.

11 (b) Number of participants served.

12 (c) Enrollments, by race and gender.

13 (d) Number of participants who completed the program.

14 Sec. 409. From the funds appropriated in part 1 for enhanced
15 food technology program, the department shall maintain a program
16 that provides on-the-job training in prison kitchens that provides
17 prisoners the opportunity to earn food service training credentials
18 recognized by the restaurant industry. The department shall use the
19 funds appropriated in part 1 for enhanced food technology program
20 to collaborate with the Michigan Restaurant and Lodging Association
21 and other restaurant industry stakeholders to provide job placement
22 assistance to individuals on probation or parole.

23 Sec. 410. From the funds appropriated in part 1, the
24 department shall ensure that any inmate with a diagnosed mental
25 illness is referred to a local mental health care provider that is
26 able and willing to treat the inmate upon parole or discharge. Upon
27 referral, the department shall ensure that the provider is informed
28 of the inmate's current treatment plan including any medications
29 that are currently prescribed to the inmate.



1 Sec. 411. From the funds appropriated in part 1, the
2 department shall report not later than March 1 on academic and
3 vocational programs, including, but not limited to, all of the
4 following:

5 (a) The number of instructors and the number of instructor
6 vacancies, by program and facility.

7 (b) The number of prisoners enrolled in each program, the
8 number of prisoners completing each program, the number of
9 prisoners who do not complete each program, and the number of
10 prisoners on waiting lists for each program.

11 (c) The racial demographics of prisoners enrolled in each
12 program.

13 (d) The steps the department has undertaken to improve
14 programs, track records, accommodate transfers and prisoners with
15 health care needs, and reduce waiting lists.

16 (e) The number of prisoners paroled without a high school
17 diploma or a high school equivalency.

18 (f) The number of prisoners not paroled at their earliest
19 release date because of a lack of a high school equivalency and the
20 reason those prisoners have not obtained a high school equivalency.

21 Sec. 413. (1) Funds appropriated in part 1 for criminal
22 justice reinvestment must be used only to fund data collection and
23 evidence-based programs designed to reduce recidivism among
24 probationers, parolees, and prisoners.

25 (2) The department shall report on programs described under
26 this section not later than March 30. The report must include all
27 of the following:

28 (a) The reincarceration recidivism rate of program
29 participants.



1 (b) The employment rate of participants who complete the
2 program.

3 (c) The cost of the program per participant.

4 Sec. 414. Revenues appropriated and collected for program and
5 special equipment funds must be considered state restricted revenue.
6 Funding must be used for prisoner programming, special equipment,
7 and security projects. Not less than 75% of funding must be used for
8 prisoner programming. Unexpended funds remaining at the close of the
9 fiscal year must not lapse to the general fund but must be carried
10 forward and made available for appropriation in subsequent fiscal
11 years.

12 Sec. 415. From the funds appropriated in part 1, the
13 department shall report on the department's plans to eliminate
14 programming for prisoners. The report must be provided not less
15 than 30 days before program elimination. As used in this section,
16 "programming for prisoners" means a department core program or
17 career and technical education program funded in part 1.
18

19 **FIELD OPERATIONS ADMINISTRATION**

20 Sec. 501. (1) From the funds appropriated in part 1, the
21 department shall review and revise as necessary policy proposals
22 that provide alternatives to prison for offenders being sentenced
23 to prison as a result of technical probation violations and
24 technical parole violations. To the extent the department has
25 insufficient policies or resources to affect the continued increase
26 in prison commitments among these offender populations, from the
27 funds appropriated in part 1, the department shall explore other
28 policy options to allow for program alternatives, including
29 department or OCC-funded programs, local level programs, and



1 programs available through private agencies that may be used as
2 prison alternatives for these offenders.

3 (2) Not later than April 1, the department shall provide a
4 report on the number of all parolees returned to prison and
5 probationers sentenced to prison for either a technical violation
6 or new sentence during the previous fiscal year. The report must
7 include the following information for probationers, for parolees
8 after their first parole, and for parolees who have been paroled
9 more than once:

10 (a) The numbers of parole and probation violators returned to
11 or sent to prison for a new crime with a comparison of original
12 versus new offenses by major offense type: assaultive,
13 nonassaultive, drug, and sex.

14 (b) The numbers of parole and probation violators returned to
15 or sent to prison for a technical violation and the type of
16 violation, including, but not limited to, zero gun tolerance and
17 substance use disorder violations. For parole technical rule
18 violators, the report must list violations by type, by length of
19 time since release from prison, by the most recent violation, and
20 by the number of violations occurring since release from prison.

21 (c) The educational history of those offenders, including the
22 number of offenders who had a high school equivalency or high
23 school diploma before incarceration in prison, the number of
24 offenders who received a high school equivalency while in prison,
25 and the number of offenders who received a vocational certificate
26 while in prison.

27 (d) The number of offenders who participated in the reentry
28 program versus the number of those who did not.

29 (e) The unduplicated number of offenders who participated in



1 substance use disorder treatment programs, mental health treatment
2 programs, or both, while in prison, itemized by diagnosis.

3 Sec. 502. From the funds appropriated in part 1, the
4 department shall issue quarterly reports for the previous 4
5 quarters detailing outcomes of prisoners who have been reviewed for
6 parole. The report must include all of the following:

7 (a) The number of prisoners in each quarter who were reviewed.

8 (b) The number of prisoners who were granted parole.

9 (c) The number of prisoners who were denied parole.

10 (d) The number of parole decisions that were deferred.

11 (e) The distribution of the total number of prisoners reviewed
12 during that quarter grouped by whether the prisoner had been
13 interviewed for the first, second, third, fourth, fifth, sixth, or
14 more than sixth time.

15 (f) The number of paroles granted, denied, or deferred for
16 each of the parole guideline scores of low, average, and high.

17 (g) The reason for denying or deferring parole.

18 Sec. 503. From the funds appropriated in part 1, the
19 department shall submit a report not later than March 1 on the
20 medically frail parole process for the previous fiscal year. The
21 report must include, but not be limited to, the following:

22 (a) A de-identified list of incarcerated individuals who were
23 considered for medically frail parole the previous year, including
24 the following:

25 (i) Demographic data, including race or ethnicity, gender, and
26 age.

27 (ii) The controlling offense of the individual.

28 (iii) A categorization of the medical condition that resulted in
29 the individual being considered for medically frail parole.



1 (iv) If the individual was granted medically frail parole or
2 not, and if not, the reason why medically frail parole was denied.

3 (b) The number of individuals who were previously granted
4 medically frail parole that were returned to prison for a new
5 offense or technical violation of parole.

6 (c) The number of individuals who were previously granted
7 medically frail parole that were discharged from further parole
8 supervision.

9
10 **HEALTH CARE**

11 Sec. 601. Not later than April 1, the department shall provide
12 a report on all of the following:

13 (a) Physical and mental health care, pharmaceutical services,
14 and durable medical equipment for prisoners. A report under this
15 section must detail previous fiscal year expenditures itemized by
16 vendor, allocations, status of payments from contractors to
17 vendors, and projected year-end expenditures from accounts. A
18 report under this section must include a breakdown of all payments
19 to the integrated care provider and to other providers itemized by
20 physical health care, mental health care, pharmaceutical services,
21 and durable medical equipment expenditures.

22 (b) Pharmaceutical prescribing practices, including a detailed
23 accounting of expenditures on antipsychotic medications, and any
24 changes that have been made to the prescription drug formularies.

25 (c) A status report on efforts to develop measurable data and
26 outcomes for physical and mental health care within the prisoner
27 population.

28 Sec. 602. (1) From the funds appropriated in part 1, the
29 department shall provide prisoners with a brochure that explains



1 the purpose and importance of signing a medical release of
2 information form. The department shall ensure that all prisoners,
3 upon any health care treatment funded from appropriations in part
4 1, are given the opportunity to sign a medical release of
5 information form designating a family member or other individual to
6 whom the department shall release records and information regarding
7 the prisoner upon the request of the prisoner. The prisoner may
8 elect to withdraw or amend the medical release of information form
9 at any time.

10 (2) The department shall ensure that a signed medical release
11 of information form follows a prisoner upon transfer to another
12 department facility or to the supervision of a parole officer.

13 (3) The medical release of information form must be placed
14 online, on a public website managed by the department.

15 Sec. 603. From the funds appropriated in part 1, the
16 department shall provide a report not later than April 1 on
17 prisoner health care utilization in the previous fiscal year, by
18 facility, that includes all of the following:

19 (a) The number of inpatient hospital days.

20 (b) The number of outpatient visits.

21 (c) The number of emergency room visits.

22 (d) The number of prisoners receiving off-site inpatient
23 medical care.

24 (e) The top 10 most common chronic care conditions.

25 Sec. 604. Funds appropriated in part 1 for Hepatitis C
26 treatment must be used only to purchase specialty medication for
27 Hepatitis C treatment in the prison population. In addition to the
28 above appropriation, any rebates received from the medications used
29 must be used only to purchase specialty medication for Hepatitis C



1 treatment. Not later than February 15, the department shall issue a
2 report for the previous fiscal year that includes all of the
3 following:

4 (a) The total amount spent on specialty medication for the
5 treatment of Hepatitis C.

6 (b) The number of prisoners who were treated for Hepatitis C.

7 (c) The amount of any rebates that were received from the
8 purchase of specialty medication, and what, if any, outstanding
9 rebates are expected to be received.

10 (d) The Hepatitis C status of all incoming prisoners and the
11 number of prisoners who are reinfected while incarcerated and
12 require retreatment for Hepatitis C.

13 (e) The number of those treated and released and then
14 retreated upon reincarceration.

15 Sec. 605. Not later than March 1, the department shall provide
16 an annual report on the utilization of Medicaid benefits for
17 prisoners.

18 Sec. 606. (1) From the funds appropriated in part 1, the
19 department shall support medication-assisted treatment clinics at
20 designated correctional facilities that allow the department to
21 treat prisoners with opioid and alcohol use disorder while
22 incarcerated. The department shall collaborate with substance use
23 disorder treatment providers and community-based clinics to provide
24 postrelease assessment and treatment. Funding must be used by the
25 department to support costs of staff, including nurses, qualified
26 mental health professionals, recovery coaches, and corrections
27 officers, and costs of medication and supplies. Participating
28 prisoners must be encouraged to receive 1 injection of nonaddictive
29 medication, if clinically appropriate, before being released from



1 prison into the community.

2 (2) The department shall submit quarterly reports on the
3 operation of medication-assisted treatment clinics. A report under
4 this subsection must include, but not be limited to, all of the
5 following:

6 (a) Clinic site locations.

7 (b) A listing of medications used in medication-assisted
8 therapies at each clinic site.

9 (c) The number of prisoners prescribed each medication under
10 subdivision (b), including if the medication is an oral or
11 injectable treatment.

12 (d) Total expenditures on clinic medications, including oral
13 and injectable medications.

14 (e) The number of prisoners who received treatment in the
15 community for a duration of at least 3 months.

16 Sec. 607. From the funds appropriated in part 1, the
17 department shall submit a report not later than March 1 that
18 includes for the previous fiscal year the total amount of all
19 medical co-payments collected by prisoners under section 67a of the
20 corrections code of 1953, 1953 PA 232, MCL 791.267a.

21 Sec. 608. From the funds appropriated in part 1, the
22 department shall submit a biannual report, by not later than March
23 1 and September 1 of each year, that contains a de-identified list
24 of prisoner deaths that occurred in the previous 6 months within
25 correctional facilities. This report must include, but not be
26 limited to, all of the following:

27 (a) The date of death.

28 (b) The correctional facility or other location at which the
29 death occurred.



1 (c) The official cause of death, as documented on the death
2 certificate.

3 (d) In cases where the cause of death is determined to be a
4 drug overdose, the type of drug used, if known.
5

6 **CORRECTIONAL FACILITIES AND ADMINISTRATION**

7 Sec. 701. (1) From the funds appropriated in part 1 for prison
8 food service, the department shall report not later than January 15
9 on the following:

10 (a) Average per-meal cost for prisoner food service. Per-meal
11 cost includes all costs directly related to the provision of food
12 for the prisoner population, including, but not limited to, actual
13 food costs, total compensation for all food service workers,
14 including benefits and legacy costs, and inspection and compliance
15 costs for food service.

16 (b) Food service-related contracts, including goods or
17 services to be provided and the vendor.

18 (c) Major sanitation violations.

19 (2) The department must ensure that not less than \$0.25 of the
20 per-meal cost consists of products grown and produced in this
21 state.

22 Sec. 702. From the funds appropriated in part 1, the
23 department shall provide a report on the cost per prisoner per day
24 for each security custody level not later than January 15. This
25 cost must include all actual direct and indirect costs for the
26 previous fiscal year. To calculate the cost per prisoner per day,
27 the department shall divide the prisoner-related costs by the total
28 number of prisoner days for each custody level and correctional
29 facility. For multilevel facilities, costs that cannot be



1 accurately allocated to each custody level may be included in the
2 calculation on a per-prisoner basis for each facility. Prisoner-
3 related costs included in the cost per prisoner per day calculation
4 must include all expenditures for the following, from all fund
5 sources:

- 6 (a) New custody staff training.
- 7 (b) Prison industries operations.
- 8 (c) Education/skilled trades/career readiness programs.
- 9 (d) Enhanced food technology program.
- 10 (e) Higher education in prison.
- 11 (f) Offender success programming.
- 12 (g) Central records.
- 13 (h) Correctional facilities administration.
- 14 (i) Housing inmates in federal institutions.
- 15 (j) Inmate legal services.
- 16 (k) Leased beds and alternatives to leased beds.
- 17 (l) Prison food service.
- 18 (m) Prison store operations.
- 19 (n) Transportation.
- 20 (o) Health care.
- 21 (p) Correctional facilities.
- 22 (q) Northern and southern region administration and support.

23 Sec. 703. Any local unit of government or private nonprofit
24 organization that contracts with the department for public works
25 services is responsible for financing the entire cost of such an
26 agreement.

27 Sec. 704. The department shall allow the Michigan Braille
28 transcribing fund program to operate at designated locations. The
29 department shall continue to encourage the Michigan Braille



1 transcribing fund program to produce high-quality materials for use
2 by the visually impaired.

3 Sec. 705. (1) From the funds appropriated in part 1, the
4 department shall report all of the following regarding critical
5 incidents by facility:

6 (a) Within 72 hours of occurrence, any critical incident
7 occurring at a correctional facility. The report must identify the
8 facility at which the incident occurred.

9 (b) Not later than March 1, the number of critical incidents
10 occurring each month at each facility during the previous calendar
11 year, categorized by type and severity of each incident.

12 (2) As used in this section, "critical incident" includes a
13 prisoner assault on staff that results in a serious physical injury
14 to staff, an escape or attempted escape, a prisoner disturbance
15 that causes facility operation concerns, the implementation of a
16 phase plan or similar significant restriction on activity within a
17 facility, a drug overdose or suspected overdose that results in
18 inpatient hospitalization, and an unexpected death of a prisoner.

19 Sec. 706. From the funds appropriated in part 1, the
20 department shall report not later than March 1 on all of the
21 following ratios for each correctional facility:

22 (a) Corrections officers to prisoners.

23 (b) Shift command staff to line custody staff.

24 (c) Noncustody institutional staff to prisoners.

25 Sec. 707. (1) From the funds appropriated in part 1, the
26 department shall focus on providing core programming interventions
27 to prisoners as early as possible during the prisoner's sentence to
28 impact the prisoner's behavior while incarcerated, and prioritize
29 individuals who are past their earliest release date and have not



1 been paroled because of not having received the required
2 programming. Programming includes, but is not limited to, violence
3 prevention programming, sexual abuse prevention programming,
4 substance use treatment programming, and core cognitive
5 programming. Nothing in this section makes parole denial appealable
6 in court.

7 (2) The department shall submit a quarterly report detailing
8 enrollment in sex abuse prevention programming, violence prevention
9 programming, substance use treatment programming, and core
10 cognitive programming. At a minimum, the report must include all of
11 the following:

12 (a) The current number of individuals who are required to
13 complete 1 or more of these types of programming, but have not yet
14 done so.

15 (b) The number of individuals who have reached their earliest
16 release date, but who have not completed required programming.

17 (c) The number of individuals who have completed 1 or more of
18 these types of programming during their current term of
19 incarceration.

20 (d) A plan of action for addressing any waiting lists or
21 backlogs for programming that may exist.

22 Sec. 708. If a pregnant prisoner in a facility funded from
23 appropriations in part 1 consents to a visitor being present, the
24 department shall allow that 1 person to be present during the
25 prisoner's labor and delivery, in addition to a doula being present
26 if the pregnant prisoner wants to work with a doula. The person
27 allowed to accompany the prisoner must be an immediate family
28 member, legal guardian, spouse, or domestic partner. The department
29 is authorized to deny access to a visitor if the department has a



1 safety concern with that visitor's access. The department is
2 authorized to conduct a criminal background check on the visitor.

3 Sec. 709. From the funds appropriated in part 1, the
4 department shall evaluate all prisoners at intake for substance use
5 disorders, serious developmental disorders, serious mental illness,
6 and other mental health disorders. Prisoners with serious mental
7 illness or serious developmental disorders must not be removed from
8 the general population as a punitive response to behavior caused by
9 their serious mental illness or serious developmental disorder. A
10 prisoner with serious mental illness or serious developmental
11 disorder that is unresponsive to treatment who presents a
12 persistent high violence risk or engages in severe disruptive
13 behavior may be placed in secure residential housing programs that
14 facilitate access to institutional programming and ongoing mental
15 health services funded from appropriations in part 1. A prisoner
16 with serious mental illness or serious developmental disorder who
17 is confined in these specialized housing programs must be evaluated
18 or monitored by a medical professional at a frequency of not less
19 than every 12 hours.

20 Sec. 710. (1) From the funds appropriated in part 1, the
21 department shall submit a quarterly report on the number of
22 prisoners confined to specialized housing units or cells. The
23 report must include, but is not limited to, the number of
24 cumulative days each prisoner was confined to the following
25 locations by correctional facility, race, security classification,
26 security level, and earliest release date (ERD):

27 (a) Administrative segregation.

28 (b) Temporary segregation.

29 (c) Punitive segregation.



1 (d) In-patient mental health, broken down by program.

2 (e) Close observation.

3 (f) Adaptive skills residential program.

4 (g) Protective custody.

5 (2) The department shall report the number of prisoners
6 assigned to a special housing unit or cell listed under subsection
7 (1)(a) to (g) who, at any time during the current or a prior prison
8 term, were diagnosed with serious mental illness or have a
9 developmental disorder.

10 (3) The report required in subsection (1) must include a chart
11 listing the number of prisoners housed in administrative
12 segregation for each of the following time periods:

13 (a) A continuous period exceeding 3 months but less than 6
14 months.

15 (b) A continuous period exceeding 6 months but less than 12
16 months.

17 (c) A continuous period exceeding 12 months or longer.

18 (4) For any prisoner housed in administrative segregation for
19 12 months or longer, an explanation of the circumstances
20 surrounding the prisoner's placement in administrative segregation.

21 Sec. 711. From the funds appropriated in part 1, the
22 department shall do all of the following:

23 (a) Ensure that any inmate care and control staff in contact
24 with prisoners less than 18 years of age are adequately trained
25 with regard to the developmental and mental health needs of
26 prisoners less than 18 years of age. Not later than April 1, the
27 department shall report on the training curriculum used and the
28 number and types of staff receiving annual training under that
29 curriculum.



1 (b) Provide appropriate placement for prisoners less than 18
2 years of age who have serious mental illness, serious emotional
3 disturbance, or a serious developmental disorder and need to be
4 housed separately from the general population. Prisoners less than
5 18 years of age who have serious mental illness, serious emotional
6 disturbance, or a serious developmental disorder must not be
7 removed from an existing placement as a punitive response to
8 behavior caused by their serious mental illness, serious emotional
9 disturbance, or a serious developmental disorder. A prisoner who is
10 less than 18 years of age with serious mental illness or a serious
11 developmental disorder that is unresponsive to treatment who
12 presents a persistent high violence risk or engages in severe
13 disruptive behavior may be placed in secure residential housing
14 programs that facilitate access to institutional programming and
15 ongoing mental health services. A prisoner less than 18 years of
16 age with serious mental illness, serious emotional disturbance, or
17 a serious developmental disorder who is confined in these
18 specialized housing programs must be evaluated or monitored by a
19 medical professional at a frequency of not less than every 12
20 hours.

21 (c) Implement a specialized offender success program that
22 recognizes the needs of prisoners less than 18 years of age for
23 supervised offender success.

24 Sec. 712. From the funds appropriated in part 1, the
25 department shall submit quarterly reports on the number of youth in
26 prison. The report must include, but not be limited to, all of the
27 following information:

28 (a) The total number of inmates less than 18 years of age who
29 are not on Holmes youthful trainee act status.



1 (b) The total number of inmates less than 18 years of age who
2 are on Holmes youthful trainee act status.

3 (c) The total number of inmates between the ages of 18 and 23
4 who are on Holmes youthful trainee act status.

5 Sec. 713. From the funds appropriated in part 1, the
6 department must submit a report on the number of prisoners who lost
7 visiting privileges. The report required under this section must be
8 submitted not later than November 15 and include data for the
9 previous fiscal year. The report must include all of the following
10 information:

11 (a) The number of prisoners who lost visiting privileges by
12 race and by violation type.

13 (b) The number of prisoners who applied to have visiting
14 privileges restored.

15 (c) The number of prisoners who had visiting privileges
16 restored.

17 (d) The number of prisoners who had visiting restrictions
18 extended.

19 Sec. 714. Funds appropriated in part 1 for intelligence unit
20 must be used by the department to maintain an intelligence unit to
21 conduct investigatory and intelligence operations for the
22 department. Intelligence operations must include, but not be
23 limited to, intelligence operations for prisoner phone services.

24 Sec. 715. (1) From the funds appropriated in part 1, the
25 department must submit a report on the department's plans to close,
26 consolidate, or relocate any correctional facility in the state,
27 upon the plan's approval. The report must include the projected
28 savings to the state from closure, consolidation, or relocation of
29 the facility and must include a projection of the potential impact



1 on staff positions.

2 (2) After a prison closure, consolidation, or relocation, the
3 department must submit a report on the actual savings achieved by
4 the department and the impact on staff positions. Savings amounts
5 and impact on staff positions must be itemized by facility. The
6 report required under this subsection must be submitted 6 months
7 after the prison closure, consolidation, or relocation.

8 Sec. 716. From the funds appropriated in part 1, the
9 department shall consult with the legislature and other appropriate
10 state agencies to develop a framework to provide investment in
11 communities that have formerly operational state correctional
12 facilities that have been closed. This framework must include plans
13 to ensure that vacant state correctional facilities do not become a
14 nuisance or danger to the community.

15 Sec. 717. From the funds appropriated in part 1, the
16 department shall make an information packet for the families of
17 incoming prisoners available on the department's website. The
18 information packet must be reviewed not later than February 1 and
19 updated as necessary. The department may partner with external
20 advocacy groups and actual families of prisoners in the packet-
21 writing process to ensure that the information is useful and
22 complete. The packet must provide information on topics including,
23 but not limited to, all of the following:

- 24 (a) How to put money into prisoner accounts.
25 (b) How to make telephone calls or create Jpay email accounts.
26 (c) How to visit in person.
27 (d) Proper procedures for filing complaints or grievances.
28 (e) The rights of prisoners to physical and mental health
29 care.



1 (f) The purpose and importance of prisoners signing a medical
2 release of information form.

3 (g) How to utilize the offender tracking information system
4 (OTIS) .

5 (h) Truth in sentencing and how it applies to minimum
6 sentences.

7 (i) The parole process.

8 (j) Guidance on the importance of the role of families in the
9 reentry process.

10 Sec. 718. From the funds appropriated in part 1, the
11 department must pursue all opportunities to reduce costs for
12 prisoners and prisoners' families for financial deposit fees and
13 commissary fees when the department negotiates or renews any
14 contract to provide these services.

15 Sec. 719. (1) Funds appropriated in part 1 for contraband
16 prevention must be used by the department to enhance a multifaceted
17 approach to contraband prevention that combines technology,
18 rigorous policies, vigilant staff, intelligence gathering, and a
19 commitment to addressing the root causes of contraband, all of
20 which are necessary for preventing contraband introductions and
21 maintaining safe and secure correctional facilities.

22 (2) Funds appropriated in part 1 for contraband prevention
23 must be used by the department to support the prevention of
24 contraband in correctional facilities, including increasing the
25 frequency and enhancing the methods of screening all individuals,
26 including all department employees, and all items entering into
27 correctional facilities.

28 (3) From the funds appropriated in part 1 for contraband
29 prevention, the department must submit a report not later than



1 March 1 on contraband and prevention efforts in correctional
2 facilities. The report must include, but not be limited to, all of
3 the following:

4 (a) Prevention efforts and strategies utilized by the
5 department.

6 (b) Challenges faced by correctional staff and other staff in
7 addressing contraband.

8 (c) Ideas and recommendations on how the legislature can
9 better assist the department with contraband prevention efforts and
10 strategies.

11 Sec. 720. The department shall ensure that Policy Directive
12 04.01.110 "Access to Correctional Facilities" does not require
13 active legislative members in good standing to provide prior notice
14 before being granted access to a department facility when
15 conducting official legislative business.

16 Sec. 721. It is the intent of the legislature that the
17 department reform the strip search protocol so that it results in
18 fewer and less intrusive strip searches of prisoners to maintain
19 the safety and security of correctional facilities. If the
20 department undertakes any efforts to perform fewer and less
21 intrusive strip searches under this section, it must provide a
22 report by April 1 on the efforts undertaken.

23 Sec. 723. From the funds appropriated in part 1, the
24 department must allow a prisoner at least 1 in-person visit per 6-
25 month period, regardless of the prisoner's violation status,
26 including a prisoner who is on restricted visitation due to
27 substance use. A prisoner is excluded from the 1 in-person visit
28 requirement if the prisoner is on restricted visitation for
29 violence against other prisoners or violence against any department



1 staff. In addition, the department must do all of the following
2 regarding the visits required under this section:

3 (a) Prioritize providing staggered time frames for visitors to
4 sign up for open visiting slots.

5 (b) Review department protocol for restricting prisoner
6 visitation, including, but not limited to, Policy Directive 05-03-
7 140, with the intent of reforming the protocol so that fewer
8 prisoners with substance use misconducts have their visits
9 restricted.

10 (c) Ensure visitation areas are child-friendly by providing
11 toys, puzzles, and other child-friendly games and activities.

12 (d) Prioritize providing healthy food choices in vending
13 machines located in visitation areas of correctional facilities,
14 including fruits, vegetables, and food items made with whole
15 ingredients.

16 (e) Provide a report, by April 1, detailing the efforts taken
17 to meet the requirements of subdivisions (a) to (d) and the
18 outcomes of these changes and effects on visitation privileges for
19 prisoners.

20 Sec. 724. From the funds appropriated in part 1, the
21 department must provide a report by April 1 for the Women's Huron
22 Valley Correctional Complex that details the meals and medication
23 administration missed by prisoners at the complex due to lack of
24 wheelchair access. The report must include all of the following
25 information:

26 (a) The total number of meals missed by prisoners due to lack
27 of wheelchair access.

28 (b) The total number of prisoners who were not administered
29 prescribed medication according to their electronic medication



1 administration record due to a lack of wheelchair access.

2 Sec. 725. From the funds appropriated in part 1, the
3 department must provide a report, by facility, by April 1 on the
4 prisoner benefit fund. The report must include, for each facility,
5 all of the following information:

6 (a) The balance of the fund as of September 30 of the previous
7 fiscal year.

8 (b) The total amount deposited into the fund in the previous
9 fiscal year, categorized by the source of deposit.

10 (c) The total amount spent from the fund in the previous
11 fiscal year.

12 (d) The general categories of the expenditure of the funds and
13 the amounts spent by category.

14 Sec. 726. It is the intent of the legislature that if a
15 correctional facility has created a plan to transition corrections
16 officer shifts from an 8-hour schedule to a 12-hour schedule, and
17 the administration of the correctional facility and corrections
18 officers are in agreement, the department must implement the 12-
19 hour schedule for that correctional facility.
20

21 **ONE-TIME APPROPRIATIONS**

22 Sec. 801. From the funds appropriated in part 1 for 1-time
23 appropriations for correctional facilities of \$55,000,000.00, the
24 department must pay each facility on a pro rata basis by the
25 applicable percentage amount of the 1-time reduction made in part 1
26 for each correctional facility.

